

1.

CASE #	CASE NAME	HEARING NAME
CVME2604020	SINDON VS MURIETTA 1, LLC	DEMURRER/MOTION TO STRIKE

Tentative Ruling: Special Demurrer overruled. General Demurrer Sustained as to both Causes of Action. Plaintiff granted leave to file amended complaint within 20 days. Motion to Strike is moot.

This is a premises liability action, filed February 17, 2026, by Plaintiff Darryl Sindon against Defendants Murietta 1, LLC and F & F Samarandayake, Inc. alleging two causes of action for negligence and premises liability arising from injuries sustained by stabbing by a third party.

Defendant Murrietta 1, LLC demurs to both causes of action in the Complaint on the grounds they fail to state facts sufficient to constitute a cause of action against it and/or they are uncertain. Murrietta asserts that the Complaint alleges that they owned, managed, maintained, operated, supervised, oversaw, secured and/or controlled the property, but fails to identify the third party, what relationship if any of the third party had to the subject premises or provide any facts of the circumstances surrounding the incident. Plaintiff does not specify any actual, claimed dangerous condition that caused him to be victim of the stabbing; nonetheless, he alleges on purported information and belief in legal conclusions that Moving Party “regularly inspected, supervised, and oversaw the SUBJECT PREMISES and that they were aware or should have been aware of the dangerous nature of the SUBJECT PREMISES” and that Moving Party had “actual or constructive knowledge of the unsafe conditions, as aforesaid, and performed acts that affirmatively contributed to the creation of these unsafe conditions” and that “there were multiple past violent, criminal incidents at or around the SUBJECT PREMISES and [Moving Party]...failed to take action.” Murrietta asserts that Plaintiff fails to identify any “incidents.” In sum, he pleads no facts to support any element of his causes of action.

In opposition, Plaintiff Sindon asserts that the demurrer should be overruled as he was a business invitee at a commercial premises owned and managed by Murrieta and the Complaint alleges that Defendant created, permitted and/or failed to remedy dangerous conditions that led to the attack including deficient crime prevention policies, inadequate proactive security, lack of guards and inadequate training and supervision of employees. Sindon asserts that Murrietta improperly demands that Plaintiff plead and prove every item of evidence supporting notice, foreseeability, breach, and causation before discovery has begun. At the pleading stage, Plaintiff need only allege ultimate facts sufficient to state a cause of action, not every evidentiary fact that may later support those allegations. Plaintiff has done so. Plaintiff alleges that Defendant failed to take reasonable measures under the circumstances, including through reasonable crime-prevention policies, proactive security, employee training, supervision, and other reasonable protective measures. The nature, burden, feasibility, and adequacy of particular measures are factual issues that cannot be conclusively resolved from the face of the Complaint. Lastly, Sindon asserts that the special demurrer fails for the independent reason that the Complaint is neither uncertain nor unintelligible. Defendant plainly understands Plaintiff’s theory of liability: that Defendant, as the

owner, operator, manager, and/or controller of the Subject Premises, failed to take reasonable measures to protect its invitees against foreseeable third-party criminal violence.

In reply, Murrietta asserts The Complaint seeks to hold Murrieta 1 liable for an unidentified third party's criminal attack without alleging the basic facts needed to state a claim. It does not identify the danger Murrieta 1 allegedly knew about, the security measure it should have taken, or how that measure would have prevented the stabbing. The Opposition does not address these omissions. Instead, it characterizes allegations of control, inadequate security, notice, and causation as "ultimate facts" and argues that the supporting facts may be obtained through discovery. Plaintiff cites no authority permitting that approach. A demurrer accepts properly pleaded facts, not legal conclusions. Murrietta asserts that although evidentiary details need not be pleaded, the Complaint must still allege facts sufficient to state each element of the claims. California courts require "fact pleading." This means the plaintiff must allege the ultimate facts that support every element of each legal claim, not just (as Plaintiff does herein) mere conclusions.

The Complaint alleges, in pertinent part, that on October 31, 2025, Plaintiff Sindon was an invitee and lawfully on the subject premises when he was violently attacked by a third party, in a reasonably foreseeable manner, sustaining multiple stab wounds. "Defendants" created, permitted and/or failed to remedy a dangerous environment and conditions that led to the incident, including lack of criminal prevention policies, proactive security, lack of guards and inadequate training and supervision of employees.

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally a plaintiff need only plead facts necessary "to acquaint a defendant with the nature, source and extent of his claims." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court's task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into

account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.

A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably respond*—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) The Complaint is not uncertain.

1st Cause of Action for Negligence - The elements of a cause of action for negligence are (1) the existence of a duty to exercise due care; (2) breach of that duty; (3) causation; and (4) damages. (*Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 500.) To impose a duty to hire guards or other similar security action, there must be “the requisite degree of foreseeability, which rarely, if ever, can be proven in the absence of prior similar incidents of violent crime on the landowner's premises. To hold otherwise would be to impose an unfair burden upon landlords and, in effect, would force landlords to become the insurers of public safety, contrary to well-established policy in this state. [Citations.]” (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 679, disapproved on other grounds in *Reid v. Google, Inc.* (2010) 50 Cal.4th 512.)

Here, the Complaint is devoid of any facts upon which it could be shown that there was the requisite degree of foreseeability, to create a duty to prevent a violent crime, such as the stabbing incident.

2nd Cause of Action for Premises Liability- The elements of a claim for premises liability are: 1) defendant was the owner, occupant or lessor of premises; 2) defendant was negligent in the use, maintenance or management of premises; and 3) negligence was a cause of injury, damage, loss or harm to plaintiff. (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.) Premises liability is a form of negligence. (*Id.*) The question of liability is whether, in the management of his property, the landowner has acted as a reasonable person under all the circumstances. (*Sprecher v. Adamson Companies* (1981) 30 Cal.3d 358, 372.) An owner or possessor of premises who knows of, or by the exercise of reasonable care could discover a dangerous condition of property has a duty to exercise ordinary care either to make the condition reasonably safe or to give an adequate warning. (*Chance v. Lawry's, Inc.* (1962) 58 Cal.2d 368, 373.) An owner of property is “not the insurer of the visitor's personal safety.” (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206.) In order to establish liability, the owner's actual or constructive knowledge of the dangerous condition is required. (*Id.*) Constructive knowledge may be established where the

“evidence suggests that the dangerous condition was present for a sufficient amount of time.” (*Id.*)

2.

CASE #	CASE NAME	HEARING NAME
CVSW2400784	DUANE KARTCHNER AND DONNA KILPATRICK VS JOHNSON	MOTION TO BE RELIEVED AS COUNSEL FOR AARON JOHNSON

Tentative Ruling: Hearing Required.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2400784	DUANE KARTCHNER AND DONNA KILPATRICK VS JOHNSON	MOTION TO BE RELIEVED AS COUNSEL FOR ARIANNA JOHNSON

Tentative Ruling: Hearing Required.

4.

CASE #	CASE NAME	HEARING NAME
CVME2502324	OROSCO VS STATER BROS MARKET	DEMURRER

Tentative Ruling: Special Demurrer for Uncertainty Sustained with 20 days leave to amend.

On March 25, 2023, Plaintiff Stephanie Orosco (“Plaintiff”) was a patron at Defendant Stater Bros. Market (“Stater Bros.”) in Lake Elsinore. As Plaintiff was walking towards the exit, she was followed and questioned by Defendant John Doe (“Doe”), a security guard for the subject premises. Plaintiff alleges Doe physically attacked and assaulted her with such force that she suffered injuries and damages. On February 28, 2025, Plaintiff filed her complaint alleging five causes of action: 1) assault (against Doe only); 2) battery (against Doe only); 3) intentional infliction of emotional distress (against Doe only); 4) negligence (against all Defendants); and 5) negligent hiring, supervision and retention (against Stater Bros. and Does 1-50).

On May 12, 2026, Plaintiff filed an Amendment to the Complaint naming Andrew Montano as Doe 2 (“Montano”).

Montano now demurs to the 4th and 5th causes of action on the ground each fails to state facts sufficient to constitute a claim against him. (C.C.P., § 430.10(e).) He also argues the entirety of the complaint is vague, uncertain, and unintelligible as to the things alleged and the theories of liability that Montano is being called upon to account for. (C.C.P. § 430.10(f).) Montano states he has been named in place of Doe 2, but the complaint attributes all alleged misconduct to a separate individual identified as “John Doe, a security guard.” It contains no factual allegations regarding Montano’s alleged personal liability whatsoever.

Plaintiff opposes and argues she has adequately alleged each of the fictitiously named Defendants is responsible in some manner for the occurrences herein alleged, and that